

**In the Supreme Court of Bangladesh
High Court Division
(Criminal Appellate Jurisdiction)**

Present:

Mr. Justice Md. Shohrowardi

Criminal Appeal No. 3511 of 2019 with

Criminal Appeal No. 3634 of 2019

Sujit Roy

.....Appellant in Cril. A. No. 3511 of 2019

K.M. Nazrul Islam

.....Appellant in Cril. A. No. 3634 of 2019

-Vs-

The State and another

**Mr Md. Munsurul Hoque Chowdhury, Senior Advocate with
Mr. Mintu Kumar Mondal, Advocate**

... For the appellant in Cril. A. No. 3511 of 2019

Mr. Mohammad Hedayet Hossain, Advocate

... For the appellant in Cril. A. No. 3634 of 2019

Mr. A.K.M. Fazlul Haque, Advocate

...for the respondent No.2 in Cril. A. No. 3511 of 2019

Mr. Mohammad Sazzad Hossain, Advocate

...for respondent No.2 in Cril. A. No. 3634 of 2019

Mr. S.M. Golam Mostofa Tara, DAG

....for the State

**Heard on 21.05.2023, 22.05.2023, 01.06.2023, 10.07.2023,
11.07.2023 and 16.07.2023**

Judgment delivered on 23.07.2023

The above-mentioned criminal appeals have arisen out of the impugned judgment and order passed by the trial Court. Therefore, both appeals were heard analogously and disposed of by this single judgment.

The above-mentioned criminal appeals were directed against the judgment and order dated 31.03.2019 passed by the Divisional Special Judge, Sylhet in Special Case No. 08 of 2017 arising out of Chhatak Police Station Case No. 14 dated 14.02.2012 corresponding G.R. No. 43 of 2012 convicting the appellants under sections 409/109 of the Penal Code, 1860 and section 5(2) of the Prevention of Corruption Act, 1947 and sentencing them under section 409 read with section 109 of the Penal Code, 1860 to suffer simple imprisonment for 02 (two) years and to pay a fine of Tk. 10,000(ten thousand) each, in default, to suffer simple imprisonment for 03(three) months more.

The prosecution case in a nutshell is that the accused Sujit Roy is the UNO, Chhatak, Sunamganj and the accused K.M. Nazrul Islam is the PIO, Chhatak. Total Tk. 98,16,000 were allotted against 1636 card holders as wage cost and 10% of the wage cost was allotted as non-wage costs under the অতি দরিদ্রদের জন্য কর্মসংস্থান কর্মসূচী in the year 2010 to 2011 for Chhatak Upazila, Sunamganj. The accused persons illegally issued 12 cheques after the expiry of the project period in the name of PIO K.M. Nazrul Islam against 12 unions for payment of Tk. 9,65,000 as non-wage costs. The accused K.M. Nazrul Islam had withdrawn the said amount although there was no requisition of the Tag officers of the project for non-wage costs and after withdrawal of the money, he was transferred from Chhatak to South Sunamjonj Upazila. Both the accused persons in connivance with each other misappropriated Tk. 9,65,000 without spending the non-wage costs.

P.W. 8 Deputy Director Zakir Hosen, ACC, Head Office, Dhaka is the informant as well as investigating officer of the case. During the investigation, he recorded the statement of the witnesses and seized the documents and prepared the seizure list and after completing the

investigation found prima facie truth of the allegation made against the accused persons and after obtaining prior approval from the Anti-Corruption Commission submitted charge sheet against them under sections 409/109 of the Penal Code, 1860 read with section 5(2) of the Prevention of Corruption Act, 1947. After that, the case record was sent to the Senior Divisional Special Judge, Sylhet and after taking cognizance, the case was transferred to the Divisional Special Judge, Sylhet for trial.

During the trial, the charge was framed against the accused persons under sections 409/109 of the Penal Code, 1860 read with section 5(2) of the Prevention of Corruption Act, 1947 and the charge framed against the accused persons was read over and explained to them. The accused persons pleaded not guilty to the charge and claimed to be tried in accordance with law. The prosecution examined 08 witnesses to prove the charge against the accused persons and after examination of the prosecution witnesses, the accused persons were examined under section 342 of the Code of Criminal Procedure, 1898 and the accused Sujit Roy submitted documents before the trial Court and both the accused persons declined to examine any DW. After concluding the trial, the trial court by impugned judgment and order convicted the accused persons and sentenced them as stated above against which they filed the instant appeals.

P.W. 1 Golam Awlia is the Inspector of Food, Chhatak Upazila. He was posted there from 01.07.2010 to 2012. He stated that he was the Tag Officer of the Employment Generation Program for Hardcore Poor for the year 2010-2011. At that time, as per the instruction of the UNO, the PIO wanted to know whether he would submit the demand letter regarding the non-wage cost. In reply, he stated that if the project is taken, he will issue the demand letter. He heard that after the withdrawal of the money, the PIO again deposited money in his account. Subsequently, he did not issue any demand letter as regards non-wage costs. He heard that the UNO directed the PIO to deposit the money and accordingly, the PIO deposited the money by challans to the government exchequer which was discussed in the meeting of the

Upazilla Co-Ordination Committee. During cross-examination, he stated that there were 13 Tag Officers against 13 Union Parishad of Chhatak Upazilla and he was the Tag Officer of Chhatak Union Parishad. He affirmed that the UNO issued the cheques. The official procedure is that the PIO shall initiate the note and after that, UNO will sign the note. He heard that by joint signature of UNO and PIO, the cheques were issued in favour of the PIO which were deposited in the account of PIO. All the cheques were account payee cheques. When the UNO came to know that the money was not spent, he instructed the PIO K.M. Nazrul Islam to deposit the money in the government exchequer. Subsequently, the accused K.M. Nazrul Islam by 04 chalans deposited the money which was officially informed to the UNO. The PIO is the monitoring officer of the non-wage cost project.

P.W. 2 Manik Chandra Das is the Upazilla Education Officer (Current Charge) in Chhatak, Sunamgonj. He was the Tag Officer of Jhawya Bazar Union from 2008 to 11.02.2013. He stated that 10% of the total wage cost was sanctioned as non-wage cost. He did not issue any demand letter and he also did not give any project for the non-wage cost. At the time of completing the work, the UNO wanted to know whether he would issue any demand letter. In reply, he stated that if any project is taken he will issue the demand letter. He did not issue any demand letter. During cross-examination, he stated that while he was the Upazilla Assistant Education Officer, he discharged his duty as Tag Officer of Jhawwa Bazar Union. He affirmed that the cheques were not issued in the name of the Tag Officers. The UNO issued 12 account payee cheques in favour of the PIO and subsequently, the PIO Nazrul Islam without spending the money was transferred to South Sunamgonj. Subsequently, the UNO issued a letter on 18.10.2011 to PIO Nazrul Islam to deposit the money. He added that PIO Nazrul Islam deposited total Tk. 9,65,000 by 4 (four) challans in the government exchequer. He affirmed that he did not issue any demand letter for any project. The accused Nazrul Islam had withdrawn the money and deposited it in his account. He could not give any reply as to whether any report was sent

to the higher authority as regards the non-wage cost. He heard that as per the instruction of UNO, the PIO deposited the cheques in his account. He denied the suggestion that accused Nazrul Islam did not misappropriate any money.

P.W. 3 Md. Nazrul Islam is the Instructor(In-charge), at Upazilla Resource Centre, Bahubal, Habigonj. He stated that between 22.10.2009 to 22.01.2017, he was posted at Upazilla Resource Center, Chhatak. At that time, he was the Tag Officer of Gobindagonj Syedergaon Union, Chhatak Upazilla. He stated that no project was taken for the non-wage cost for payment of 10% of the wage cost. As per the proposal of the PIO, the UNO decided to withdraw the money through account payee cheques. No demand letter was issued for the project. Subsequently, the UNO instructed the PIO to deposit the money in the government exchequer and the PIO by 4 challans deposited the money. During cross-examination, he stated that PIO Nazrul Islam issued the office note to the UNO for the non-wage costs and in that note, the PIO mentioned that the note was initiated following the policy. He affirmed that both the UNO and the PIO issued the account payee cheques in favour of the PIO maintained with Sonali Bank Ltd, Chhatak Branch in the name of the PIO. In the meeting of the Upazilla committee, the UNO mentioned that the money for the non-wage costs was not spent. He admitted that in the policy of 2010 to 2011 there is no specific rule for issuing any demand note for non-wage costs. After depositing the money to the government exchequer, the PIO informed the matter to the UNO. He affirmed that he did not issue any demand letter and without any demand letter, PIO Nazrul Islam had withdrawn the money and deposited the same to his account. He also affirmed that the accused Nazrul Islam deposited the money in the account of PIO. He also affirmed that the total allotment of non-wage costs and the wage costs are required to be allotted based on the recommendation of the Upazilla Project Committee and many Tag Officers of the projects had resigned. He denied the suggestion that the accused Nazrul Islam did not misappropriate the money.

P.W. 4 Faruq Ahmed is the Sanitary Inspector, at Upazilla Health and Family Planning Office, Chhatak, Sunamgonj. He stated that from 2009 he is discharging his duty in the said office. At that time, he was the Tag Officer of Uttar Khurma Union Parishad of Chhatak Upazilla. From 2010 to 2011 no project was taken for the 10% non-wage costs. As per the proposal of the PIO, the UNO decided to withdraw the money through account payee cheques and subsequently, no demand letter was issued for the non-wage costs. The UNO instructed the PIO to deposit the money in the government exchequer and the PIO deposited the money through 04 challans and informed the matter to UNO. The PIO issued the office note and in the said note the PIO mentioned that he initiated the note following the policy. Both the UNO and PIO issued the cheques in favour of the PIO. Subsequently, he heard that the UNO mentioned in the meeting of the Upazilla Committee that the cheques amount was not spent by the PIO. The UNO issued 12 cheques in favour of the 12 Union Parishad. He heard that after depositing the money, the PIO informed the matter to the UNO by official letter.

P.W. 5 Shah Md. Abdul Malek was posted as Assistant Area Director, Sub-Area Center, Bangladesh Open University from 01.03.2010 to 23.05.2016. At that time, he was the Tag Officer of Dularbazar Union Parishad, Chhatak. He stated that he did not initiate any project for the Hard Core Poor People. The UNO decided to issue account payee cheques as per the proposal of the PIO. He did not issue any demand letter. The UNO instructed the PIO to deposit the money in the government exchequer. Subsequently, the PIO deposited the money through 04 challans and informed the matter to the UNO. In the note sheet of the non-wage costs, the PIO mentioned that the note was initiated following the policy and both the UNO and PIO issued the cheques in favour of the PIO. The UNO mentioned in the meeting of the Upazilla Committee that the PIO did not spend the money. The UNO issued total 12 cheques and after depositing the money, the PIO informed the matter to the UNO. During cross-examination, he affirmed that he did not issue any demand letter and without any demand letter

accused K.M. Nazrul Islam had withdrawn the money from his account by cheques issued by UNO Sujit Roy. During cross-examination, he stated that as the first project of the government, he did not know about the project. He affirmed that as per instruction of the higher authority, the accused Nazrul Islam deposited the money. He could not say whether accused Nazrul Islam misappropriated the money or not.

P.W. 6 Md. Abdul Alim is the Sub-Assistant Engineer, at the Public Health Directorate, Daulatpur, Manikgonj. He stated that he was posted from July 2010 to 2013 at Chhatak Upazilla and at that time, he was the Tag Officer of Shoila Afjalabad Union. As per the proposal of the PIO Nazrul Islam, the UNO issued the account payee cheques in favour of the PIO and PIO Nazrul Islam deposited the said cheques in his official account. He stated that he did not issue any demand letter. Subsequently, the concerned UNO instructed the PIO to deposit the money in the government exchequer and PIO Nazrul Islam deposited the money through 04 challans which was informed in the meeting of the Upazilla Committee. During cross-examination, he stated that 12 cheques were issued under the joint signature of the PIO and UNO in favour of the PIO. The PIO informed the matter of depositing the money to the UNO. He affirmed that he did not issue any demand letter and in connivance with each other, they misappropriated the money. During cross-examination, on behalf of the accused Nazrul Islam, he affirmed that there was no specific policy as regards the wage costs and non-wage costs. Possibly the demand letter was required to be issued in January. No work was done for the non-wage costs. He could not say whether the PIO misappropriated the money or not.

P.W. 7 Md. Morshed Alam is a Constable of the Anti-Corruption Commission. He stated that while he was posted at the Anti-Corruption Commission, he signed the seizure list dated 02.08.2012. He proved the seizure list as exhibit-1 and his signature as exhibit-1/1 and the records were seized in his presence. During cross-examination, he stated that there were other witnesses in the seizure list but he could not remember his name. After

noon, he signed the seizure list. On recalled by the prosecution, he stated that on 02.08.2012 at 12.30 pm in the presence of Md. Mokbul Hossain Mollah, the investigating officer Zakir Hossain seized the documents mentioned in serial No. 5Ka to 5(uma) presented by Rafiq Mia, PIO, Chhatak. He signed the seizure list. He denied the suggestion that the seizure list was not prepared following the law and as per instruction of the authority, he signed the seizure list.

P.W. 8 Deputy Director Md. Zakir Hossain (retired) is the informant as well as the investigating officer. He stated that after the inquiry, he recommended to lodge the FIR against the accused persons. He proved the FIR as exhibit-2 and his signature as exhibit-2/1. He stated that the accused persons misappropriated total Tk. 9,65,000 of the non-wage costs of the Employment Generation Program for Hard Core Poor without spending money beyond the knowledge of the project committee. Without any demand letter, the accused persons issued cheques and misappropriated the said amount. During the investigation, he recorded the statements of the witnesses and prepared the seizure list. He proved the seizure list as exhibit-1 and his signature as exhibit-1/2. He proved the alamats as material exhibit-I. On 27.02.2013, the project officer of the concerned Upazilla sent 4 cheques along with the statement of account to him. He proved the statement of account as exhibit-3 series. He submitted charge sheet. During cross-examination, he stated that based on the report of the inquiry committee, he lodged the FIR and based on the records he deposed in court and there was no allegation as regards the wage cost amounting to Tk. 98,60,000 against accused Sujit Roy. In the FIR it has been mentioned that the PIO had withdrawn Tk. 9,65,000 by 04 cheques. The UNO Sujit Roy appointed 12 Tag Officers of 12 Union Parishad. He denied the suggestion that the demand letter issued by the Tag Officer is required to be submitted to the PIO. He denied the suggestion that a note sheet was initiated to the UNO based on the demand letter. He affirmed that the note sheet as regards non-wage costs was seized from the PIO who issued the note sheet to the UNO for non-wage

costs. In the note sheet, the PIO had given a proposal for the issuance of the 12 cheques in favour of the 12 Union Parishad and specific amounts were mentioned. Both the UNO and the PIO issued 12(twelve) cheques drawn on Account No. 001008672 maintained with the Sonali Bank Limited, Chhatak Branch in favour of the PIO. The PIO K.M. Nazrul Islam had withdrawn the money. The 4 cheques deposited by the PIO K.M. Nazrul Islam were produced in Court. He did not seize the counterpart of the chequebook. At the time of recording the statement under section 161 of the Code of Criminal Procedure, 1898 accused Sujit Roy stated that subsequently, he came to know that the money was not spent and initially orally and subsequently by written order, he instructed the PIO to deposit the money in the government exchequer and following the instruction, the PIO K.M. Nazrul Islam deposited Tk. 9,65,000 in the government exchequer. He denied the suggestion that no demand letter is required for spending the money on non-wage costs. He also denied the suggestion that there is no specific clause in the policy of 2010 as regards the issuance of the demand note.

On recalled by the prosecution, P.W. 8 deposed as an informant. He stated that based on the ER No. 34 of 2011, he lodged the FIR. While the accused persons were discharging their duty at Chhatak Upazilla, they misappropriated Tk. 9,65,000 of non-wage costs beyond the knowledge of the project committee. Based on the approval contained in memo No. 94 dated 13.02.2012, he lodged the FIR. He proved the FIR as exhibit 4. Subsequently, by office order dated 08.05.2012, he was appointed as investigating officer. He proved the Memo dated 08.05.2012 as exhibit-5. During investigation on 02.08.2012, he seized the documents mentioned in serial No. 5(Kha) to 5 (uma) presented by Md. Rafiq Mia, PIO Chhatak. He proved the seizure list as exhibit-1 and his signature as exhibit-1/2. He proved the alamat as material exhibit-I. The PIO vide memo No. 239 dated 27.02.2013 sent 4 cheques along with the statement of account which were proved earlier as exhibit-3 series. During investigation, he found the truth of the allegation against the accused persons and after getting approval from the

Head Office contained in memo No. 8203 dated 25.07.2013 submitted charge sheet. He proved the memo dated 25.03.2013 as exhibit 6. During cross-examination, he affirmed that as an inquiry officer, informant and investigating officer, he discharged his duty in the case. He affirmed that there is a specific policy as regards the non-wage costs. He denied the suggestion that during the investigation accused K.M. Nazrul Islam deposited Tk. 9,65,000 in the government exchequer.

Learned Senior Advocate Mr. Md. Monsurul Haq Chowdhury appearing along with learned Advocate Mr. Mintu Kumar Mandal on behalf of the accused Sujit Roy submits that while the accused Sujit Roy was discharging his official duty as UNO, Chhatak, he along with PIO K.M. Nazul Islam bonafide issued 12 cheques in favour of the PIO for spending Tk. 9,65,000 of non-wage costs and he did not withdraw any money. When the matter came to his notice, by office order dated 18.10.2011 he instructed the PIO to deposit the money in the government exchequer and following his instruction accused K.M. Nazrul Islam deposited the entire money. He further submits that he issued the cheques in good faith and there was no policy as regards the spending the money of non-wage costs of the Employment Generation Program for the Hardcore Poor. Therefore, no offence was committed by the accused. He relied on the decisions made in the case of Ayubur Rahman (MD) vs. the State reported in 56 DLR 281 and Begum Khaleda Zia vs. the State reported in 55 DLR 597.

Learned Advocate Mr. Hedayet Hossain appearing on behalf of the accused K.M. Nazrul Islam submits that before issuance of the cheque, all the Tag Officers were requested by the UNO to issue the demand letter for non-wage costs and as per government circular the money was required to be returned to the government after the expiry of the project and for the public interest he along with the UNO bonafide issued the cheques to save the money in another official account of the PIO. He further submits that subsequently by 4 challans he deposited the entire amount following the instruction dated 18.10.2011 of the UNO. He also submits that there was no

policy as regards the non-wage costs and several times, the concerned officials of the government by written letters or orally wanted to know about the rules as regards the non-wage costs. Subsequently, he deposited the money following clause 27 of the policy of the অতি দরিদ্রদের জন্য কর্মসংস্থান কর্মসূচী. বাস্বায়ন নীতিমালা (২০১০-২০১১ সনের ১ম পর্যায়ের কর্মসূচী বাস্বায়নের জন্য). Therefore, no offence was committed by the accused and he prayed for acquittal. Learned Advocate Mr. Hedayet Hossain also relied on a decision made in the case of Sekandrar Ali Howlader and others vs. the state reported in 4 BLC (AD) 117.

Learned Advocate Mr A.K.M. Fazlul Haque appearing on behalf of respondent No. 2 in Criminal Appeal No. 3511 of 2019 submits that 10% of the wage costs were allotted as non-wage costs of the অতি দরিদ্রদের জন্য কর্মসংস্থান কর্মসূচী and as per the policy of the said program the Chairman of the project committee of the wage costs shall issue a demand letter and after issuance of the demand letter, the non-wage costs are required to be approved by the Upazila Committee. He further submits that no demand letter was issued by the Chairman of the project committee for the non-wage costs from October to December (first phase) 2010 to 2011 and the accused persons malafide issued 12 account payee cheques after the expiry of the project period in the name of the PIO which were required to be issued in favour of the Tag officers. The accused PIO, K.M. Nazrul Islam had withdrawn the money after the expiry of the project period and did not deposit the money to the government exchequer following the office order dated 05.01.2011 issued by the government and in connivance with each other, the accused persons misappropriated Tk. 9,65,000. The prosecution witnesses proved the charge against the accused persons beyond all reasonable doubt. Therefore, he prayed for the dismissal of the appeal.

Learned Advocate Mr. Md. Sazzat Hossain appearing on behalf of respondent No. 2 in Criminal Appeal No. 3634 of 2019 adopted the submission of the learned Advocate Mr. A.K.M. Fazlul Haque and relied on the decision made in the case of Md. Nurul Hoque Howlader vs. the State reported in 11 BLD(AD)200.

I have considered the submission of the learned Senior Advocate Mr. Md. Munsurul Hoque Chowdhury who appeared along with learned Advocate Mr. Mintu Kumar Mondal on behalf of the accused Sujit Roy and the learned Advocate Mr. Mohammad Hedayet Hossain who appeared on behalf of accused K.M. Nazrul Islam. I have also considered the submission of the learned Advocate Mr. A.K.M. Fazlul Haque and the learned Advocate Mr. Mohammad Sazzad Hossain who appeared on behalf of respondent No. 2 in both the appeals, perused the evidence, impugned judgment and order passed by the trial court and the records.

On perusal of the records, it appears that there is a policy namely “অতি দরিদ্রদের জন্য কর্মসংস্থান কর্মসূচী বাস্তবায়ন নীতিমালা (২০১০-২০১১ সনের ১ম পর্যায়ের কর্মসূচী বাস্তবায়নের জন্য).” In clause No. 11 of the said policy, it has been mentioned that the departmental officer of the concerned Upazilla is the Chairman of the Union Project Committee of the non-wage costs and other respectable persons are the members of the said committee. The said committee is required to be approved by the Upazilla committee and 10% of the total wage cost was allotted as non-wage costs subject to the issuance of the demand letter by the Tag Officers and approval of the Upazila Committee under Clause 5.3 of the said policy. Under Clause 27 of the said policy, the money which was not spent is required to be returned to the government within 7 days from the date of completion of the project. P.Ws 1 to 6 are the Tag Officers of the concerned Union Parishads. They stated that no demand letter was issued by them for non-wage costs. Both the UNO and PIO issued 12 cheques in the name of PIO. Under said policy, the cheques were required to be issued in the name of the Tag Officers who are the Chairman of the Project Committee of the non-wage costs. The project period of the non-wage costs started from October to December (first phase) 2010-2011.

On perusal of the records, it further appears that the project period of the “অতি দরিদ্রদের জন্য কর্মসংস্থান কর্মসূচী” expired in December 2010 and accused K.M. Nazrul Islam had withdrawn total Tk. 9,65,000 by 4 cheques dated 23.01.2011, 31.01.2011, 06.02.2011 and 31.01.2011 issued by the accused

persons. On 18.10.2011, before the lodgment of the FIR, accused Sujit Roy instructed the accused K.M. Nazrul Islam to deposit the unspent money in the government exchequer. After that, the accused K.M. Nazrul Islam by 4 challans dated 15.01.2012, 17.01.2012, 14.02.2012 and 22.02.2012 deposited Tk. 9,65,000 in the government exchequer and informed the matter to the accused Sujit Roy. It is an admitted fact that the accused persons issued 12 cheques in the name of accused K.M. Nazrul Islam and subsequently, he withdrew the money on 23.01.2011, 30.01.2011, 06.02.2011 and 31.01.2011. As per Clause 5.3 of the “অতি দরিদ্রদের জন্য কর্মসংস্থান কর্মসূচী বাস্তবায়ন নীতিমালা (২০১০-২০১১ সনের ১ম পর্যায়ের কর্মসূচী বাস্তবায়নের জন্য)”, the unspent money was required to be returned to the government within 7 days from the date of completion of the project but the cheques were issued on 23.01.2011, 31.01.2011, 06.02.2011 and 14.02.2011 after expiry of the project period.

P.Ws. 1 to 6 stated that no demand letter was issued by the Tag Officers for spending the non-wage costs. After the expiry of the project period without any demand letter the accused persons issued 12 cheques in favour of the accused K.M. Nazrul Islam although the cheques were required to be issued in the name of Tag Officers who were the Chairman of the project committee of both the wage costs and non-wage costs.

The government issued an office order on 05.01.2011 as regards the return of the unspent money of the Employment Generation Program for the Hard Core Poor. At this stage it is pertinent here to quote the relevant part of the office order dated 05.01.2011 issued by the government which runs as follows;

“গণপ্রজাতন্ত্রী বাংলাদেশ সরকার
দুর্যোগ ব্যবস্থাপনা ও ত্রান বিভাগ
“অতি দরিদ্রদের জন্য কর্মসংস্থান” কর্মসূচী পরিচালকের কার্যালয়
দুর্যোগ ব্যবস্থাপনা ও ত্রান ভবন
৯২-৯৩, মহাখালী বা/এ, ঢাকা

বিষয়ঃ ২০১০-১১ অর্থ বছরে “অতি দরিদ্রদের জন্য কর্মসংস্থান” কর্মসূচীর অধীন বাস্বায়িত ১ম পর্যায়ে প্রকল্পের চূড়ান্ত প্রতিবেদন ও অর্থ ব্যয়ের হিসাব প্রেরণ প্রসংগে।

২০১০-২০১১ অর্থ বছরে “অতি দরিদ্রদের জন্য কর্মসংস্থান” কর্মসূচীর অধীনে ১ম পর্যায়ে গৃহীত প্রকল্পসমূহের কাজ আগামী ১৫ জানুয়ারী, ২০১১ তারিখে শেষ হবে। সংশ্লিষ্ট সকলকে সে মোতাবেক প্রকল্প ভিত্তিক প্রকল্পের সমাপ্তির চূড়ান্ত প্রতিবেদন নিম্নোক্ত ছক অনুযায়ী (শ্রম মজুরী ও প্রশাসনিক ব্যয়ের হিসাব আলাদাভাবে) বিশেষ বাহক মারফত আগামী ২৫ জানুয়ারী, ২০১১ তারিখের মধ্যে প্রেরণ নিশ্চিত করার জন্য বিশেষভাবে অনুরোধ করা হলো।”

It is found that unspent money was not returned to the government by the accused persons within 25.01.2011 following said office order dated 05.01.2011 issued by the Government. Therefore, it cannot be held that the accused persons bona fide issued the cheques in favour of the accused K.M. Nazrul Islam. The money was deposited in the government exchequer after about 1(one) year from the date of expiry of the project while the accused K.M. Nazrul Islam was discharging his duty at another station. Both the accused persons issued the cheques in defiance of the “অতি দরিদ্রদের জন্য কর্মসংস্থান কর্মসূচী বাস্বায়ন নীতিমালা (২০১০-২০১১ সনের ১ম পর্যায়ের কর্মসূচী বাস্বায়নের জন্য)” and they are jointly liable for illegally issuing the cheques and withdrawal of money after the expiry of the project period.

It is found that the entire money was deposited by the accused K.M Nazrul Islam. The misappropriation of money from the public exchequer is a grave offence. The accused persons were entrusted with the fund of hardcore poor but they illegally issued 12 cheques after the expiry of the project period violating the provision made in clauses 5.3, and 11 of the “অতি দরিদ্রদের জন্য কর্মসংস্থান কর্মসূচী বাস্বায়ন নীতিমালা (২০১০-২০১১ সনের ১ম পর্যায়ের কর্মসূচী বাস্বায়নের জন্য)” and did not deposit the money within 25.01.2011 following clause 27 of the said policy and the office order dated 05.01.2011 issued by the government. Therefore, they have defalcated Tk.9,65,000. Both temporary and permanent defalcation are the same. There is no difference between them.

At this stage, it is relevant here to cite the decision made in the case of Md. Nurul Haque Hawlader vs. the State reported in (1991)11 BLD (AD) 260, wherein at para 14 ATM Afzal J, as his Lordship was then, opined that;

“A public servant who is entrusted with property can use the same only for the purpose and/or in the manner he is required to do under any agreement, instruction, order or law. He cannot part with the property even temporarily or convert it for any other purpose beyond the terms governing such entrustment. If he cannot produce the property on demand without any satisfactory explanation, it will be presumed that he has committed a criminal breach of trust, no matter he thereafter makes good the loss by returning the same in cash or in kind.”

In the case of Md. Sirajul Islam (Md.) vs. the State, reported in 13 MLR(AD) 118 para 8, Md. Ruhul Amin, CJ, opined that;

“It is seen from the materials on record that misappropriation of rent collected by him is admitted fact. In that view of the matter, we are of the view that the trial Court was quite correct in convicting the appellant and that the High Court Division did not commit any error in dismissing the appeal.”

In the case of Sekandar Ali Hawlader vs. the State, reported in 4 BLC(AD)117 para 6 our Apex Court held that;

“From the above, it was therefore a case of temporary defalcation. It is a serious offence nevertheless. However, the ends of justice, we think, will be met in the facts and circumstances of the case if the sentence of fine of each of the accused-appellants is maintained

and the substantive sentence is reduced to the period already undergone as prayed for.”

In the case of Ayubur Rahman (MD) Vs the State, reported in 56 DLR 281 para 9 it has been held that;

“Criminal misconduct cannot be impugned to any action of a public servant when he performs his function in accordance with the prescribed set of rules and procedures without manifestly showing any instance of abuse of his official position within the meaning of section 5(1) of the Prevention of Corruption Act, 1947.”

In the case of Begum Khaleda Zia vs. The State, reported in 55 DLR 597 para 10 it has been held that;

“Criminal intention is sine qua non for an offence under section 5(1) of the Prevention of Corruption Act, 1947. When a decision is taken collectively or even individually by following the rules of procedure or the rules of business criminal intention behind such decision should not normally be inferred.”

Both the judgments passed by the High Court Division referred to herein above are distinguishable from the facts of the present case. Both the accused persons issued the cheques after the expiry of the project period in defiance of the “অতি দরিদ্রদের জন্য কর্মসংস্থান কর্মসূচী বাস্তবায়ন নীতিমালা (২০১০-২০১১ সনের ১ম পর্যায়ের কর্মসূচী বাস্তবায়নের জন্য)”. From the discussion made herein above it is crystal clear that it is a case of temporary defalcation and serious offence nevertheless. The defalcation is also admitted by the defence. The accused Sujit Roy is the UNO, Chhatak Upazilla and the accused K.M. Nazrul Islam is the PIO. Both are responsible officers and they were entrusted with the fund of hard core poor. But they issued 12 cheques in defiance of the said policy. The accused persons did not deposit the money following the provision made in clause 27 of the said policy and the office order dated

05.01.2011 issued by the government. Therefore, it cannot be said that the accused persons bonafide issued the cheques.

In view of the above facts and circumstances of the case, evidence, findings, observation and proposition I am of the view that the prosecution proved the charge against the accused persons to the hilt beyond all reasonable doubt and the trial court on proper assessment and evaluation of the evidence passed the impugned judgment and order of conviction.

Now the question has arisen whether the trial court passed the impugned sentence considering the gravity of the offence. It is found that after the withdrawal of the money, the accused K.M. Nazrul Islam was transferred from Chhatak Upazilla to Sough Sunamgonj. While he was discharging his duty as PIO, South Sunamgonj, he deposited the money. Although the charge framed under sections 409/109 of the Penal Code, 1860 read with section 5(2) of the Prevention of Corruption Act, 1947 was proved beyond all reasonable doubt against the accused persons but the fact remained that during the inquiry and before lodging the FIR at the instruction dated 18.10.2011 of the accused Sujit Roy, the then UNO, Chhatak Upazilla, accused K.M. Nazrul Islam deposited the entire money on 15.01.2012, 17.01.2012, 14.02.2012 and 22.02.2012 by 4(four) challans. There is no evidence that the accused Sujit Roy had withdrawn money but in connivance with the accused K.M. Nazrul Islam, he jointly issued the cheques and thereby abated the accused K.M. Nazrul Islam in misappropriation.

In view of the above, I am of the view that the ends of justice would be best served, if the impugned sentence awarded by the trial court is modified as under:

1). The accused K.M. Nazrul Islam is found guilty of the offence under section 409 of the Penal Code, 1860 read with section 5(2) of the Prevention of Corruption Act, 1947 and he is sentenced under section 409 of the Penal Code to suffer simple imprisonment for 06 (six) months.

2). The accused Sujit Roy is found guilty of the offence under sections 409/109 of the Penal Code, 1860 read with section 5(2) of the Prevention of Corruption Act, 1947 and he is sentenced under section 409 of the Penal Code to suffer simple imprisonment for 03 (three) months under sections 409/109 of the Penal Code, 1860.

Admittedly, the entire misappropriated amount was deposited by the accused K.M. Nazrul Islam. Therefore, no sentence of fine is awarded/passed against the accused persons.

In the result, both appeals are disposed of with a modification of the sentence.

Send down the lower Court's record at once.